

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on June 10, 2022. The complaint is directed against FINCAS GARCÍA LÁZARO, S.L. with NIF B57719775 (hereinafter, FINCAS GL). The reasons for the complaint are as follows: The property management company that manages the community of owners to which the complainant belongs has sent by email a document titled "List of Outstanding Receipts," which includes the names, surnames, properties, and amounts owed by delinquent co-owners. It states that this document is sent by email and by postal mail to all co-owners, and the same occurs with the "Billing Report," which shows the cold water consumption of each community member along with their name, surname, property, and subscriber number. Furthermore, it states that the website of the complained party lacks a privacy policy or legal notice.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to FINCAS GL for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was acknowledged on July 5, 2022, as evidenced by the acknowledgment of receipt in the file. Simultaneously, due to an error, EXP202206864 was also processed, in which the aforementioned complaint was forwarded to the complained party. Both transfers were notified in a timely and separate manner, as evidenced by the acknowledgments of receipt in the referred files.

THIRD: In response to the aforementioned transfer and request for information, a document from the complained party was received by this Agency, which was initially linked only to C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

EXP202206864, as this was the only file to which the complained party referred in its response. Upon reviewing the response to the transfer, on July 15, 2022, the complaint in EXP202206864 was inadmissible, as there were no reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

FOURTH: On February 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant in file EXP202207292 was admitted for processing.

FIFTH: On August 30, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the complained party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.c) of the GDPR, classified in Article 83.5 of the GDPR.

SIXTH: After notifying the aforementioned initiation agreement in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), the complained party submitted a written statement in which, in summary, it stated that the file had been duplicated since the present one is the same as EXP202206864 to which it had already submitted allegations, which were accepted, and it was agreed not to admit the complaint for processing, therefore requesting the annulment of the sanctioning procedure. It attached the following documents:

- Written transfer of the complaint and request for information addressed to Fincas GL, dated June 17,

2022, related to EXP202206864

- Written response to the transfer by Fincas GL, referencing EXP202206864 and its proof of submission on July 14, 2022 (Registration Number: REGAGE22e00030436354)

SEVENTH: On July 22, 2024, a resolution proposal was made, proposing "That the Director of the Spanish Agency for Data Protection proceed to ARCHIVE the present sanctioning procedure directed at FINCAS GARCÍA LÁZARO, S.L., with NIF B57719775."

EIGHTH: After notifying the aforementioned proposal in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) and after the period granted for the formulation of allegations has elapsed, it has been confirmed that no allegations have been received from the complained party.

From the actions taken in the present procedure and the documentation in the file, the following has been established:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
3/6

PROVEN FACTS

FIRST: On June 10, 2022, and with registration number REGAGE22e00023894699, a complaint was received by this Agency regarding Fincas GL, for an alleged violation of the General Data Protection Regulation (hereinafter, GDPR).

SECOND: This complaint led to the opening of case EXP202206864, during which information was requested from Fincas GL, which responded by means of a document submitted on July 14, 2022 (Registration number: REGAGE22e00030436354).

THIRD: On July 15, 2022, the complaint in case EXP202206864 was inadmissible, as after analyzing the reasons presented by the respondent, it was found that there were no reasonable indications of the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

FOURTH: Concurrently, due to an error, case EXP202207292 was also processed, derived from the same complaint submitted by the complainant on June 10, 2022 (Registration number: REGAGE22e00023894699), and a new request for information was made, which was received by Fincas GL on July 5, 2022, to which no response was given.

FIFTH: As no response was obtained to this request in case EXP202207292, the complaint was admitted for processing, and a sanctioning procedure was initiated by Agreement of Initiation dated August 30, 2023.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

From the aforementioned Background and the Proven Facts, it has been established that two different cases, EXP202206864 and EXP202207292 (from which the present sanctioning procedure derives), were erroneously processed. In both cases, in parallel and separately, in accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and guarantee of digital rights (hereinafter LOPDGDD), the complaint was forwarded to FINCAS GL, so that it could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

Both requests were notified in a timely and separate manner, as evidenced by the acknowledgments of receipt in the referenced cases.

In response to them, a document from the respondent was received by this Agency, which was initially linked only to case EXP202206864, as this was the only case to which the respondent referred in their response. In this response, the respondent states the following:

"The community of owners ***COMMUNITY.1 of Palma presents its accounts to its owners only every quarter, never to outsiders, which includes a report of income and expenses, a balance sheet, and a list of outstanding receipts, the latter being the reason for the complaint. This is the way the community of owners presents its accounts, as agreed by the owners' meeting.

The distribution of water is sent every two months, as agreed in the owners' meeting in 2020 to distribute it this way. They have an individual water meter, and the consumption is distributed among all owners based on their usage.

Regarding our website "fincasgarcialazaro.com", please be informed that the legal notice, privacy policy, and cookies policy are posted. They can verify this by visiting the website.

[...]

If you look at archive.org, which is a website that takes "snapshots" of all internet websites, we can see that, for example, in November 2020, it was already there.

[...]

We have suspended the sending of this type of information until we have your resolution and will inform the community of owners of the opened case."

As stated in case EXP202206864, these allegations, along with the initial complaint, were examined in the previous case, resulting in the inadmissibility of the complaint due to the lack of indications.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

5/6

rationales for the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

However, as there was no response to the transfer in the present file (EXP202207292), the claims and evidence provided by Fincas GL could not be taken into account, which is why, on February 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claimant in the present file was admitted for processing.

Subsequently, on August 30, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the accused party, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of the GDPR.

From the above, it is evident that the present sanctioning procedure should be archived.

It must be taken into account that Administrative Sanctioning Law, due to its specialty, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full validity of the principle of presumption of innocence.

In this sense, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the results of the evidence

presented, freely assessed by the sanctioning body, must translate into an acquittal ruling.” This principle is expressly included for sanctioning administrative procedures in Article 53.2.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, which recognizes the interested party the right “to the presumption of non-existence of administrative liability until proven otherwise.”

In short, the application of the principle of presumption of innocence prevents attributing an administrative infringement when no evidence or indications have been obtained from which the existence of an infringement can be derived.

In this case, from the actions carried out and the documentation in the file, there is no inference of an infringing action by the accused party within the jurisdiction of the AEPD, which is why the complaint should be archived.

All of this is without prejudice to the Agency, applying the investigative and corrective powers it holds, being able to carry out subsequent actions related to the data processing referred to in the complaint.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/6

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been accredited, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST. TO ARCHIVE the present sanctioning procedure directed at FINCAS GARCÍA LÁZARO, S.L., with NIF B57719775.

SECOND. TO NOTIFY this resolution to FINCAS GARCÍA LÁZARO, S.L., with NIF B57719775.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency does not become aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

938-16012024

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es